

ORDERS

The decree holder filed this Execution Petition to execute the Recovery Certificate issued by the Deputy Registrar of Chits, 2nd Zone, Malleshwaram, Bengaluru in Dispute No.DRB-2/CFS/118/2019-20 under Section 71(a) of Chit Funds Act.

The office has raised the objection stating that the judgment debtors are not residing within the jurisdiction of this Court.

Heard the learned Counsel for the decree holder on the office objection.

The learned Counsel for the decree holder relied the judgment of the Hon'ble High Court of Karnataka in the case between Muneer Ahmed Sheriff and others V/s Javeeria Nusrath (ILR 2004 KAR 5254).

In the light of the above, I perused the materials available on record.

As stated above, this Execution Petition is filed by the decree holder against the judgment debtors to execute the Recovery Certificate issued by the Deputy Registrar of Chits, 2nd Zone, Malleshwaram, Bengaluru in Dispute No.DRB-2/CFS/118/2019-20 under Section

Ex.No.447/2023

71(a) of Chit Funds Act. Among the judgment debtors, judgment debtor No.1 is residing at Nagamangala Taluk, judgments No.2, 4 and 6 are residing at Manya Taluk, judgment debtor No.3 is residing at Maddur Taluk and judgment debtor No.5 is residing at Pandavapura Taluk. The properties sought to be attached are situated not within the territorial jurisdiction of this Court. They are situated within the territorial jurisdictions of different Courts of Mandya District, Under Section 39(4) of the Code of Civil Procedure, this Court has jurisdiction to execute the decree under execution against the judgment debtors and the property which is situated out side the local limits of this Court. Therefore, the office objection raised in this case is over ruled.

To hear on I.A.No.1.

Call on 21.06.2025.

(VEDAMOORTHY B.S.)

XXXI Addl. City Civil & Sessions Judge,
Bengaluru.